

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 12/04/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self[1]represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS SET 1
FILED BY: BETHEL ISLAND ESTATES MHC, LLC

TENTATIVE RULING:

Defendant's motion to compel further responses to Form Interrogatories, set one, is GRANTED in part and DENIED in part. Plaintiff is ORDERED to provide objection-free, code-compliant responses by January 9, 2025.

Defendant's motion to compel further responses to Requests for Admissions, set one, is GRANTED in part and DENIED in part. Plaintiff is ORDERED to provide objection-free, code-compliant responses by January 9, 2025.

At this time, Defendant's request for monetary and terminating sanctions is DENIED.

Form Interrogatories, Set One:

On May 29, 2025, Defendant Bethel Island Estates MHC LLC (also on behalf on Monte Christo Communities LLC) served Form Interrogatories, Set One. The Form Interrogatories contained 9 requests. On June 26, 2025, Plaintiff Martinez served only objections to each request. The court observes that while Plaintiff's objections were not all identical, although 5 of 9 were, the objections all appear to object as to the requests being vague, ambiguous, irrelevant and a violation of the right to privacy.

Pursuant to California Code of Civil Procedure section 2030.210: (a) The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following:

- (1) An answer containing the information sought to be discovered.
- (2) An exercise of the party's option to produce writings.
- (3) An objection to the particular interrogatory.

The answer to each interrogatory must be "as complete and straightforward as the information reasonably available to the responding party permits." (California Code of Civil Procedure section 2030.220(a); *Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 590.) Objections must be justified with specific grounds set forth clearly in the response. (California Code of Civil Procedure, section 2030.240.) Boilerplate or unsubstantiated objections are disfavored by courts and may be sanctionable. (See *Korea Data System Co. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1516.) "If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (CCP § 2030.220(b).) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (CCP § 2030.220(c).) An answer is incomplete if it merely refers to other documents without summarizing them. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.)

Generally, several of the form interrogatory requests relate to general background information about the Plaintiff and one relates to Plaintiff's responses to requests for admission. The court finds that none of Plaintiff's objections have merit given the nature of the interrogatory in the context of this case.

For example, Form Interrogatory 2.2 merely asks for Plaintiff's date and place of birth, to which Plaintiff objects to this interrogatory because it is overly burdensome and oppressive and that the information sought is obtainable from some other source that is more convenient, less burdensome, or less expensive, and seeks information that is equally available to Defendant. The objection is without merit.

While Plaintiff filed no opposition, this court must still consider the privacy interests at stake as some of Plaintiff's requests seek information that is protected under the California Education Code. (See *Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal. App. 4th 1081, 1087 ["The lack of opposition in the instant case thus was an improper ground upon which to grant summary judgment, in the absence of a finding that defendant met its initial burden of proof."]; see also California Rules of Court 3.1348, subdivision (b) the failure to file a written opposition or to appear at a hearing or the voluntary provision of discovery shall not be deemed an admission that the motion was proper or that sanctions should be awarded.)

On balance, this court finds Plaintiff's objections were meritless and therefore Defendant's Motion to Compel Further Responses to Form Interrogatories, set one is GRANTED and Plaintiff is ORDERED to provide, objection-free, code compliant responses by January 9, 2026.

Requests for Admissions, Set One:

On May 29, 2025, Defendant Bethel Island Estates MHC LLC (also on behalf on Monte Christo Communities LLC) served Form Interrogatories, Set One and Requests for Admissions, Set One on Plaintiff Martinez. The Requests for Admissions contained 19 separate requests. On June 26, 2025 Plaintiff provided the same objection to all 19 requests for admission:

Plaintiff objects to the extent this Request is vague and ambiguous or fails to identify the requested information with reasonable particularity. It also seeks information protected by the work product doctrine or attorney-client privilege, so Plaintiff objects on grounds that this Request seeks Plaintiff's counsel's legal analysis. Plaintiff further objects because this Request is overly burdensome, duplicative, unreasonably cumulative, and oppressive. The information sought is obtainable from some other source that is more convenient, less burdensome, or less expensive. Also, this Request violates Code. Civ. Proc. § 2019.030 which prohibits duplicative written discovery. See also, *Vidal Sassoon v. Sup. Ct.* (1983) 146 Cal.App. 681, 685; *Sexton v. Sup. Ct.* (1987) 58 Cal.App.4th 1403, 1408-1409; *Professional Career Colleges, Magna Institute v. Sup. Ct.* (1989) 207 Cal.App.3d 490, 494.

Pursuant to California Code of Civil Procedure 2033.220, subdivision (a): "Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits." (*Id.*) Boilerplate or unsubstantiated objections are disfavored by courts and may be sanctionable. (See *Korea Data System Co. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1516.)

This court observes that all 19 requests for admission relate to the circumstances surrounding and involving Plaintiff's, purportedly signed, General Release Agreement with Defendants for the subject property in this action. Plaintiff's fails to provide a single substantive response and provides the same objection to all 19 requests. The court reviewed each request for admission and finds Plaintiff's objections to be meritless.

While Plaintiff filed no opposition, this court must still consider the privacy interests at stake as some of Plaintiff's requests seek information that is protected under the California Education Code. (See *Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal. App. 4th 1081, 1087 ["The lack of opposition in the instant case thus was an improper ground upon which to grant summary judgment, in the absence of a finding that defendant met its initial burden of proof."]; see also California Rules of Court 3.1348, subdivision (b) the failure to file a written opposition or to appear at a hearing or the voluntary

provision of discovery shall not be deemed an admission that the motion was proper or that sanctions should be awarded.)

On balance, this court finds Plaintiff's objections were meritless and therefore Defendant's Motion to Compel Further Responses to Requests for Admissions, set one is GRANTED and Plaintiff is ORDERED to provide, objection-free, code compliant responses by January 9, 2026.

Defendant's requests for monetary and/or terminating sanctions is DENIED at this time.

The court must order sanctions unless substantial justification or other circumstances make imposing sanctions unjust. (C.C.P. section 2025.450(g)(1), *Van v. LanguageLine Solutions* (2017) 8 Cal.App.5th 73, 82.) At this time, the court finds sanctions are not appropriate. The court finds that while Plaintiff was represented by counsel at the time of her response to Defendant's discovery request, the court finds that Plaintiff's counsel failed to properly respond to the requests. On November 21, 2025, counsel was relieved from representing Plaintiff Martinez. The court finds, currently, it unjust to order Plaintiff herself to be responsible for sanctions under the circumstances.

At this time, the court does not find that terminating sanctions would be appropriate. (See in contrast, *Creed-21 v. City of Wildomar* (2017) 18 Cal. App. 5th 690 [Court's terminating sanction against plaintiff found appropriate where court had already issued less severe monetary sanctions and two orders to compel plaintiff to produce the witness for deposition for which plaintiff failed to comply].)

The court will observe that this is the second Motion to Compel that the court has granted against Plaintiff. The previous Motion to Compel was granted on October 9, 2025, with an order for sanctions if Plaintiff did not comply with the court's order for Plaintiff to communicate with Defendant's counsel to schedule a deposition. According to Defendant's most recent brief filed November 25, 2025, it appears that Plaintiff did not comply with the court's order.

Thus, the Plaintiff is on notice that any further failures to comply with the court's orders compelling Plaintiff to provide further responses to discovery could possibly result in monetary, evidentiary or terminating sanctions against Plaintiff. (See *Creed-21 v. City of Wildomar* (2017) 18 Cal. App. 5th 690.)

2. 9:00 AM CASE NUMBER: C24-03117

CASE NAME: JOSEPH GIOVINCO VS. FORD MOTOR COMPANY, A DELAWARE CORPORATION

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PROD OF DOCS, SET 1
FILED BY: GIOVINCO, JOSEPH ANTHONY**

TENTATIVE RULING:

Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff's Motion to Compel Further Responses to Request for Production of Documents is otherwise denied.

On or about February 24, 2025, Plaintiffs propounded Request for Production of Documents, Set One, on Defendant, which included 31 requests related to Plaintiff's action under the Song-Beverly Act for alleged nonconformities or defects in their 2023 Ford Escape. Under the Song-Beverly Act, the cause of action at issue here, "[a] plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use,

value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element). (Civ. Code, §1793.2; *Ibrahim v. Ford Motor Co.* (1989) 214 Cal.App.3d 878, 886-887, 263 Cal.Rptr. 64.)" (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.)

Based on the court's review of all Plaintiff's requests, all Requests for Production appear relevant to Plaintiff's case. Here, Plaintiff's Requests Nos. 1-14 and 31 relate specifically to documentation related to the Subject Vehicle, contacts with Plaintiffs or defenses specifically asserted by Defendants. Request Nos. 15-29 relate to policies and procedures for how Ford handles Song-Beverly cases relating to their call centers, repurchasing, and repairs. Request No. 30 relates to other customer complaints electronically stored that are substantially similar to complaints made by Plaintiff with respect to the Subject Vehicle.

On April 4, 2025, Defendant provided responses. Defendant referenced documents in part and objected in part to 22 of the 31 requests, provided objections only to 8 requests and conducted a diligent search that resulted in an inability to comply with one request.

The court finds that Plaintiff provided a separate statement compliant with the code.

Pursuant to California Code of Civil Procedure section 2031.240, subdivision (b), "[i]f the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.

(c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

The court does not necessarily agree that all of Defendant's initial objections were with merit; for example, Defendant objected to Request No. 30 being overly broad, unduly burdensome and seeking irrelevant documents because it is not limited to the subject vehicle or the allegation in Plaintiffs' Complaint, to any type of customer complaint, or to a reasonable or relevant timeframe. The court disagrees. The court finds this request for production to require documents related to complaints by owners with substantially similar non-conformities or defects as alleged in the subject vehicle indicates the same complaints that are at issue here. Plaintiff defined "substantially similar" to mean similar customer complaint that would be the same nature of the reported system, malfunction, trouble code, Technical Service Bulletin Recommendation, dashboard indicator light, or other manifestation of a repair problem, as description listed in any warranty summary or repair order for the Subject Vehicle. The request is specific to the complaints at issue with the Subject Vehicle and are therefore relevant. The court finds Defendant's objection to the request as being vague, ambiguous, overly broad and therefore not relevant would have been overruled. A Song-Beverly Action focuses on whether

plaintiff's vehicle had defects that substantially impaired its use, value or safety. Plaintiffs are entitled to discovery that is probative of defendant's knowledge of defects in 2023 Ford Escape vehicles, "including in vehicles other than the subject vehicle, and defendant's handling of complaints." (*Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 143-44, 154-55, (superseded by revisions to the Federal Rules of Civil Procedure. See Fed. R. Civ. P. 26(b)) [evidence pertaining to defects in same model transmission in vehicles other than subject vehicle is relevant to Song-Beverly claim]; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 973-74, 993 [evidence pertaining to similar problem in other vehicles other than subject vehicle are highly relevant].)

Nonetheless, on November 17, 2025, Defendant provided supplemental documents and responses to Plaintiff's Requests for Production. Upon review of Defendant's supplemental responses, the court finds the responses sufficient, and Defendant has provided code compliant responses. That said, there are still objections raising attorney-client privilege or the attorney work product protections, yet it appears that Defendant has failed to provide support for their assertions as required by the code (See California Code of Civil Procedure section 2031.240, subdivision (c)(1).)

Accordingly, Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff's Motion to Compel Further Responses to Request for Production of Documents is otherwise denied.

**3. 9:00 AM CASE NUMBER: C24-03117
CASE NAME: JOSEPH GIOVINCO VS. FORD MOTOR COMPANY, A DELAWARE CORPORATION
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS
FILED BY: GIOVINCO, JOSEPH ANTHONY
*TENTATIVE RULING:***

Plaintiff's Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff's Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is otherwise denied.

On February 24, 2025, Plaintiff propounded on Defendant twenty-one form interrogatories related to their action brought pursuant to the Song-Beverly Act. Plaintiff seeks to compel further responses to Request Nos. 12.1, 15.1, and 17.1. Plaintiff asserts that Defendants have failed to provide appropriate responses to Form Interrogatories 12.1, 15.1, and 17.1, as required under the Code. The court finds that Plaintiff provided a separate statement compliant with the code.

Form Interrogatory No. 12.1 seeks witnesses to the Subject Vehicle's defects; Form Interrogatory No. 15.1 seeks information and facts supporting Defendant's affirmative defenses; and Form Interrogatory No. 17.1 seeks information regarding Defendant's responses to Plaintiff's requests for admissions.

A Song-Beverly Action focuses on whether plaintiff's vehicle had defects that substantially impaired its use, value or safety, and as such, the court finds all of Plaintiff's requests relevant.

Pursuant to California Code of Civil Procedure section 2030.210: (a) The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following:

- (1) An answer containing the information sought to be discovered.
- (2) An exercise of the party's option to produce writings.
- (3) An objection to the particular interrogatory.

Form Interrogatory No. 12.1:

This request seeks specific information related to witnesses to the “incident.” The court does not disagree with Defendant’s initial objection that the term “incident” in essence is vague and ambiguous in the context of a Song-Beverly Act case. However, counsel for Defendant is well-experienced in these types of cases and seeing that Form Interrogatories are approved by Judicial Council and routinely used in civil discovery, the term “incident” should have meant more to Defendant’s counsel than to litigants not typically involved in these types of action and therefore their objection is without merit. Nonetheless Defendant provided an adequate response to Plaintiff’s request by producing documents.

Form Interrogatories No. 15.1 and 17.1:

Upon review of Defendant’s responses provided for Request Nos. 15.1 (affirmative defenses) and 17.1 (unqualified admissions), the court finds the responses sufficient. Despite providing objections, Defendant also provided responses by producing documents, which they are permitted to do under the code, and in part providing affirmative substantive responses. While Plaintiff may not be satisfied with Defendant’s answers, the responses do not appear to be evasive or a misuse of the discovery process requiring this court’s intervention. However, Defendant is to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026.

Accordingly, Plaintiff’s Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff’s Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is otherwise denied.

Courtroom Clerk's Session

4. 1:30 PM CASE NUMBER: C24-00266
CASE NAME: SHALINA BOYD, AN INDIVIDUAL VS. BELLA NAIL & SPA
SETTLEMENT CONFERENCE WITH JUDGE MELISSA O'CONNELL IN DEPT 20
FILED BY:
TENTATIVE RULING:

The Parties jointly requested a continuance of the matter to a later date.